

A LAW TO ESTABLISH THE KWARA STATE INNOVATION & INFORMATION TECHNOLOGY AGENCY AND FOR CONNECTED PURPOSES

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The Kwara State House of Assembly Enacts:

PART I - ESTABLISHMENT, INCORPORATION, FUNCTION AND
POWERS OF THE AGENCY

1. (1) There is established the Kwara State Innovation and Information Technology Agency (in this law referred to as the “Agency”).
- (2) The Agency –
 - (a) shall be a body corporate with perpetual succession and a Common seal.
 - (b) may sue or be sued in its own name; and
 - (c) may acquire, hold or dispose of any property or interest in property, movable or immovable for the purpose of this Law.
- (3) The Agency shall have such powers and duties as are conferred on it by this Law or by any other Law.
2. The objectives of the Agency are to -
 - (a) offer technical, creative and innovative ICT support and training to the Kwara State Government and all its MDAs, as well as the Kwara State House of Assembly and the Kwara State Judiciary;
 - (b) improve the quality of governance by using digital

transformation and information technology to promote efficiency, accountability and transparency;

- (c) to ensure the highest standard of service delivery in information technology systems and products proffered to the State by vendors and consultants;
- (d) ensure telecommunications and ICT industry players operating in the State abide by the necessary standards and guidelines set by the Agency;
- (e) promote digital transformation and internet penetration in the State;
- (f) improve the life of the people of the State using technology via financial inclusion, digital literacy and empowerment programs;
- (g) create an enabling environment for the establishment, development and operation of innovative Startups in Kwara State; and
- (h) provide for the development and growth of technology-related talent;

3. The functions and powers of the Agency are to –

- (a) create a framework for the planning, research, development, standardisation, application, coordination, monitoring, evaluation & regulation of Information Communication Technology (ICT) practices, activities and systems in Kwara State and all matters related thereto and for that purpose, and which without detracting from the generality of the foregoing shall include providing universal access for Information Technology and systems penetration including rural, urban and under-served areas;
- (b) provide guidelines to facilitate the establishment and maintenance of appropriate information technology and

systems application and development in Kwara State for public and private sectors, urban-rural development, the economy and the government;

- (c) develop guidelines for electronic governance and monitor the use of electronic data interchange and other forms of electronic communication transactions as an alternative to paper-based methods in government, commerce, education, the private and public sectors, labour, and other fields, where the use of electronic communication may improve the exchange of data and information;
- (d) to supervise and oversee the planning, development, deployment, management and maintenance of ICT infrastructure and software in all the MDAs in Kwara State;
- (e) to design, implement and maintain the official web portal, on-site and cloud servers, electronic mail and ICT application systems for the State and any other MDA within the State that requires the service;
- (f) to foster and manage relationships between the State government and private ICT and telecommunications firms;
- (g) to develop guidelines for setting up standardisation and certification of ICT applications, network systems and delivery systems in Kwara State;
- (h) to ensure that any web portals, software applications, ICT systems and infrastructure designed or implemented by external consultants for the State or any of its MDAs meet the set standards and guidelines for certification and operation;
- (i) create incentives to promote the use of ICT in all spheres

of life in the State, including the guidelines for setting up technology companies, ICT systems and innovation hubs;

- (j) introduce appropriate regulatory policies and incentives to encourage creation of new startups and private sector investment in the information technology industry;
- (k) collaborate with any local or state government, company, firm or person in any activity, which in the opinion of the Agency is intended to facilitate the attainment of the objectives of the Law;
- (l) determine the critical areas in ICT requiring Research and Development and collaborating with tertiary institutions in the State on such areas;
- (m) advise the State Government on ways of promoting the development of ICT including introducing appropriate ICT legislations to enhance State security;
- (n) establish and enforce standards and procedures to regulate and monitor the erection of towers, masts, laying of fibre-optic cables and renewable energy infrastructure across public lands and property within the State in a manner that will guarantee the safety of the public;
- (o) design, develop and maintain a metropolitan fibre-optic backbone infrastructure and harmonised routes for the State that all telecommunications providers must key into;
- (p) accelerate digital transformation and internet penetration in Kwara State so as to enable new technologies;
- (q) ensure the protection and management of all Rights of Way in the State in relation to the telecommunication and renewable energy industries;
- (r) define the specification and quality of materials to be used by telecommunication service providers and renewable

energy utility service operators in the construction and erection of towers and renewable energy infrastructure in the State;

- (s) fix fees, rates, charges and or penalties for the doing of or failure to do anything required under this law or regulations and make guidelines made pursuant to this Law;
- (t) facilitate and conduct ICT and innovation training programs for the State and its MDAs;
- (u) represent the Kwara State government in all information technology, telecommunications and renewable energy investments, special purpose vehicles, limited companies and partnerships;
- (v) conduct an audit of and maintain ICT infrastructure deployed within the State government; and
- (w) perform such other duties, which in the opinion of the Agency are necessary or expedient to ensure the efficient performance of the functions of the Agency under this Law.

PART II - GOVERNING BOARD OF THE AGENCY

4. (1) There is established for the Agency a Governing Board (in this law referred to as “the Board”) consisting of –
- (a) a Chairman who will be the Director-General of the Agency;
 - (c) the Secretary;
 - (d) the Legal Officer;
 - (e) one member from each of the following MDAs not below the rank of a Director who shall be ex-officio members -

- (i) Office of the Secretary to the State Government;
 - (ii) Kwara State Ministry of Business, Innovation & Technology;
- (f) three persons who are experts in the following areas of Information Technology –
 - (i) ICT infrastructure & telecommunications;
 - (ii) a successful tech startup; and
 - (iii) digital marketing & social media.

(2) All members shall be part-time except the Director-General, Secretary and Legal Officer;

(3) All public-sector members must be indigenes of Kwara State, cover all genders and cover all three geo-political zones in the State;

(4) The members of the Board, other than the ex-officio members, shall be appointed by the Governor on the recommendation of the Director-General.

5. The Board shall have powers to –

(1) formulate overall policy for the management of the affairs of the Agency;

(2) manage the Kwara State Innovation & Technology Fund established under Section 25 of this Law;

(3) appoint, promote, terminate, dismiss and exercise disciplinary control over the principal officers and senior staff of the Agency;

(4) structure the Agency into such number of departments as it deems fit for the effective discharge of the functions of the Agency;

(5) exercise such powers as are necessary or expedient for giving effect to the provision of this Law.

(6) create gov council for Innovation Hub

6. The functions of the Board are –

- (a) to develop, track and maintain a future ICT masterplan for Kwara State;

- (b) to bring together the several separate efforts in ICT and Digital Innovation under one umbrella for common purpose and cohesion;
- (c) to provide advisory on ICT matters to the Governor.
- (d) to accelerate the advancement of E-Government in Kwara State;
- (e) to assess existing ICT infrastructure within the State MDAs.;
- (f) to vet technology projects in different areas of ICT like broadband & connectivity, artificial intelligence, networking, software engineering and cybersecurity;
- (g) to recommend technology products and solutions to the State Government; and
- (h) to bring in external partners and foreign investment into the State via Innovation Hubs and other projects;

7. The Chairman and other members of the Board, other than ex-officio members shall be appointed by the Governor and each hold office:

- (a) for a term of four years in the first instance and may be reappointed for a further term of four years and no more; and
- (b) on such terms and conditions as may be specified in his/her letter of appointment.

8. A member of the Board shall cease to hold office if he/she –

- (a) resigns his appointment as member of the Board by notice in writing to the Governor
- (b) becomes of unsound mind;
- (c) becomes incapable of carrying out the functions of his/her office either arising from infirmity of mind or body; or
- (d) dies;

9. (1) A member may at any time be removed from office by the

Governor if –

- (a) he/she becomes bankrupt or makes a compromise with his creditors;
- (d) he/she is convicted of a felony or any offence involving dishonesty;
- (e) he/she is guilty of serious misconduct in relation to his/her duties of the Board;

(2) A member may at any time be removed from office by the Governor if in the opinion of the Governor that it is in the interest of the Agency that he/she be relieved of their duties and is notified in writing to that effect.

(3) When a vacancy occurs in the membership of the Board, it shall be filled by the appointment of a successor. By the Governor to hold office for the remainder of the term of office of the predecessor provided that the successor shall represent the same interest as his predecessor.

10. Board positions will be remunerated from the Fund on approval of the Governor.

11. (1) At every meeting of the Board, the Chairman shall preside and in his absence the members present at the meeting shall appoint one of the members to preside at the meeting.

(2) The Board shall meet not less than four times each year and subject, thereto, the Board shall meet whenever it is summoned by the Chairman, and if require to do so by notice given to him by not less than one-third of members, he shall summon a meeting of the board to be held within fourteen days from the date in which the notice is given.

12. When the Board desires to obtain the advice of any person on any particular matter, the board may co-opt him to the board for such period as it thinks fit, but a person who is a member by virtue of this

paragraph shall not be permitted to vote at any meeting of the board and shall not count towards a quorum.

13. (1) Subject to its standing orders, the board may appoint such a number of standing or ad hoc committees as it thinks fit to consider and report on any matter with which the Board is concerned.
- (2) A Committee appointed under this paragraph shall –
 - (a) Consist of such number of persons (not necessarily members of the Board as may be determined by the Board) and a person, other than a member of the Board, shall hold office on the committee in accordance with the terms of his appointment; and
 - (b) Be presided over by a member of the Board.
- (3) The quorum of any committee set up by the Board shall be its quorum as provided under Section 10 (4) of this Law.
- (4) The decision of any committee of the Board shall constitute a recommendation to the Board.
14. The validity of any proceedings of the Board or any of its committees shall not be affected by –
 - (a) Any vacancy in the membership of the Board, or committee; or
 - (b) Any defect in the appointment of a member of the Board of committee; or
 - (c) Reason that any person not entitled to do so took part in the proceedings of the Board or committee.
15. The quorum at a meeting of the Board shall be not less than one-third of the total number of the Board members at the date of the meeting.
16. A member of the Board or a committee who has a personal interest in any contract or arrangement entered into or proposed to be considered by the Board or committee shall forthwith disclose his interest to the Board or committee and shall not vote on any question relating to the contract or arrangement.

17. (1) All questions at a meeting of the Board shall be determined by a majority of vote of members present.
- (2) At any meeting of the Board, each member shall have a vote and if there is equality of votes, the presiding Chairman shall have a second or casting vote.

PART III - MANAGEMENT AND STAFF OF THE AGENCY

18. (1) There shall be for the Agency a Director General who shall –
- (a) Be appointed by the Governor, subject to the approval of two-thirds majority of the House of Assembly;
 - (b) Be the chief executive and accounting officer of the Agency;
 - (c) Be responsible for the execution of policy and the day to day administration of the affairs of the Agency; and
 - (d) Perform such other duties as the Board may, from time to time, assign to him.
- (2) The Director-General shall hold office for a term of 4 years in the first instance and may be re-appointed for a further term of 4 years and no more and on such terms and conditions as may be specified in his letter of appointment.
- (3) The Director-General shall be paid such remuneration and allowances as may be determined by Revenue Mobilization, Allocation & Fiscal Commission (RMAFC).
- (4) The Agency may, subject to the approval of the Board, appoint such other staff as it may deem necessary and expedient, from time to time, for the proper and efficient performance of the function of the Agency.
- (5) The terms and conditions of service including remuneration, allowances, benefits and pensions of the staff and employees of the

Agency shall be determined by the Board in such a manner as to attract and retain quality and highly skilled manpower.

19. (1) The Director-General shall perform the following functions –
 - (a) annually prepare the draft business plan of the Agency of the ensuing financial year and submit the plan to the board for approval;
 - (b) submit within three months of his appointment the draft organisational plan of the Agency inclusive of key performance indicators for each department to the Board for approval;
 - (c) recommend to the Board a scheme containing the proposed personnel requirement, remuneration of the personnel of the Agency and their conditions of service based on the approved organisational plan;
 - (d) attend meetings of the Board and keep the Board informed on a regular basis of the performance of the Agency; and
 - (e) ensure compliance with measures approved by the Board with respect to good governance.
- (2) In preparing the organisational plan of the Agency, the Director-General shall ensure that the agency is structured into departments and units to comprehensively cover all its functions allowing sound organisational practice.
20. Notwithstanding the provisions of section 18(2) the Director-General shall cease to hold office if –
 - (a) he/she resigns his appointment by notice addressed to the Governor;
 - (b) he/she becomes of unsound mind;
 - (c) he/she becomes incapable of carrying out the functions of his/her office either arising from infirmity of mind or body; or
 - (d) he/she dies;
 - (e) he/she is convicted of felony or of any offence involving

dishonesty or corruption;

(f) he/she has been found guilty of the breach of code of conduct or other serious misconduct in relation to his duties; or

(g) the Governor is satisfied that it is not in the interest of the Agency or the public for the person to continue in office and the Governor removes him from office.

21. (1) The Governor shall appoint an Administrative Secretary who shall be an Administrative Officer not below grade level 14.

(2) The Administrative Secretary shall be the Secretary of the Board and shall be responsible for –

(a) the administrative functions of the Agency and of the Board's Secretariat;

(b) keeping the books and proper records of the proceedings of the Board;

(c) conveying decisions of the Board to its members;

(d) issue notices of meetings of the Board; and

(e) carry out such other duties as the Board may direct.

22. (1) The Governor shall appoint a Legal Officer to the Board who shall be a Legal practitioner with not less than seven years' post call experience.

(2) The Legal officer shall be responsible for the Legal functions of the Agency.

23. (1) The Board may subject to the approval of the Governor from time to time appoint such other employees as it may consider necessary, to enable it to effectively perform its functions under this Law.

(2) The Board may specifically delegate to the Director-General the power to appoint such categories of staff of the Agency as the Board may from time to time specify.

(3) The staff of the Agency shall be public servants in the service of

Kwara State.

(4) The Agency shall grant pension and gratuities in accordance with the pension law of the State.

(5) The Agency may engage consultants and Advisers in areas where it has technical deficiency.

24. (1) The Agency may make Staff Regulations relating generally to the conditions of service of its employees.
- (2) Pending the publication of the Staff Regulations described in subsection (1) the employment of the staff of the Agency shall be governed by the terms and conditions generally applicable to officers in the public service of the State.
- (3) Staff Regulations issued by the Agency under Sub-section (1) shall not have effect until approved by the Board and published In the Gazette.

PART IV - ESTABLISHMENT OF THE KWARA STATE INNOVATION & TECHNOLOGY FUND

25. (1) There is established a fund, which shall be known as the Kwara State Innovation & Technology Fund (in this Law referred to as “the Fund”) to be managed by a Fund Manager approved by the Board.
- (2) There shall be paid and credited into the Fund established under subsection (1) of this section:
- (a) grants-in-aid and assistance from national, bilateral and multilateral agencies;
 - (b) all other sums accruing to the Fund by way of gifts, endowments, bequest or other voluntary contributions by persons and organisations, provided that the terms and conditions attached to such gifts, endowments, bequest or

contributions will not jeopardise the functions of the Agency;

(c) such monies as may be appropriated for the fund by the State House of Assembly;

(d) sums from sources to be approved by the Board; and

(e) all other monies as may, from time to time accrue to the Fund.

(3) The Fund shall be applied to -

(a) provide a labelled startup with finance

(b) provide early-stage finance for a labelled startup on the recommendation of the Fund Manager subject to the approval of the Board; and

(c) provide relief to technology laboratories, accelerators, incubators and hubs

26. All monies accruing to the Fund and account of the Agency from the sources specified in section 25 and 32 of this Law respectively shall be exempted from income tax and all contributions to the Fund and the accounts of the Agency shall be tax deductible.

27. The Board may, in accordance with the Investments Trustees Act, invest any surplus funds in profit yielding ventures and the net incomes so generated shall be paid into the Fund.

28. (1) The Director-General of the Agency shall keep proper records of the accounts, Accounts and sources and use of the monies and assets of the Fund and shall render accounts to the Board, from time to time.

(2) The account of the Fund shall be audited not later than 3 months after the end of the year to which it relates by auditors appointed by the Board from the list and in accordance with the guidelines supplied by the Auditor General of the State.

29. (1) Except as otherwise provided in this Law, any person or corporate body who contravenes or fails to comply with the provisions

of this Law commits an offence.

(2) Where a body corporate fails to make payment within two months after a demand note for unpaid levy plus a sum which is equal to two percent of this levy has been served on the body corporate, the body corporate commits an offence under this Law.

(3) Where an offence under this Law is committed by a body corporate or firm or other association of individuals:

(a) Every Chief Executive Officer of the body corporate or any officer acting in that capacity or on his behalf; and

(b) Every person purporting to act in any capacity mentioned under paragraph (a) of this subsection (3) commits an offence, unless he proves that the law or omission constituting the offence took place without his knowledge, consent or connivance.

(4) Where a person or body corporate fails to comply with the guidelines and standards prescribed by the Agency in the discharge of its duties under this Law, such person or body corporate commits an offence.

(5) The Agency shall collaborate with the Standards Organisation of Nigeria to enforce the guidelines and standards formulated by the Agency in the discharge of its duties under the Law.

PART V - INNOVATION HUBS & STARTUPS

30. (1) Subject to this Law, the Governor shall by Order, designate and facilitate the establishment of and partnership with existing Information Technology Hubs (in this Law referred to as “Hub”) all over the State.

(2) Upon application made on that behalf by the Director-General, through

the Board charged with responsibility for matters relating to Commerce, the Governor may by Order designate the Hubs as Free Zones and may specify in the Order such incentives and/or tax holidays that startups engaged in the Hubs may enjoy.

(3) For the Hubs established by the State, the Governor shall appoint a Governing Council to oversee affairs and ensure continuity.

31. (1) The Hubs will facilitate the birth, growth, training, incubation, fundraising and acquisition of Startups in an enabling environment.

(2) The Hubs established by the State will accept membership fees, added services fees, sponsorship fees, space rental fees, concession fees and investment dividends on behalf of the State government.

(3) The Hubs will be entitled to retaining ten percent of all revenue generated for their operational expenses and investments in Startups.

(4) The Hubs operations will also be directly funded by the Fund on approval of the Board of the Agency.

PART VI - FINANCIAL PROVISIONS

32. The Agency shall establish and maintain an account into which shall be paid and credited:

(a) such sums as may be appropriated for the fund by the State House of Assembly;

(b) grants-in-aid and assistance from national, bilateral and multilateral agencies;

(c) all other sums accruing to the Fund by way of gifts, endowments, bequest or other voluntary contributions by persons and organisations, provided that the terms and conditions attached to such gifts, endowments, bequest or contributions will not jeopardise the functions of the Agency;

- (d) income from any investment or other property acquired by or vested in the Agency;
- (c) Rents, fees and other internally generated revenues from services provided by the Agency; and
- (e) all other monies as may, from time to time accrue to the Agency.

33. The Agency may, from time to time, apply the proceeds of the Fund established under section 25 of this Law;

- (a) To the cost of administration of the Agency;
- (b) To the payment of the emoluments, allowances and benefits of members of the Board and for reimbursing members of the Board or of any committee set up by the Board and for such expenses as may be expressly authorised by the Boards;
- (c) To the payment of the salaries, fees or other remuneration or allowances gratuity and pensions, and other benefits payable to the staff and other employees of the Agency, so however that no payment of any kind under this paragraph (except such as may be expressly authorised by the Board) shall be made to any person who is in receipt of emoluments from the State Government;
- (d) For the development and maintenance of any property vested in or owned by the Agency;
- (e) For maintaining general financial reserves subject to general or special directive that may be given in that behalf by the Governor in accordance with the provisions of this Law; and
- (f) To any other expenditure in connection with all or any of its functions under this Law.

34. (1) The Agency shall, not later than 30th September in each year submit to the Governor an estimate of its expenditure and income (including estimates of expected payments to the Agency or the fund) for next succeeding year;
- (2) The Agency shall keep proper accounts in respect of each year in line with IPSAS, and proper records in relation thereto and the accounts shall be audited as provided in subsection (3).
- (3) The accounts of the Agency shall be audited at the end of each financial year by external auditors appointed from the list of auditors provided by the Auditor-General of the State in accordance with the financial regulations and fees of the auditors and the expenses for the audit shall generally be paid for from the Fund..
35. The Agency shall prepare and submit to the Governor not later than 30th June in each year a report in such form as prescribed in this Law on the activities of the Agency during the immediately preceding year, and shall include in the report a copy of the audited accounts of the Agency for that year and the audited accounts of the Agency.
36. (1) The Agency may accept gift of land, money or other property on such terms and conditions, if any, as may be specified by the person or organisation making the gift.
- (2) The Agency shall not accept any gift if the conditions attached by the person organisation making the gift are inconsistent with the functions of the Agency under this Law.
37. The Agency may, in accordance with the general authority of the Governor, borrow such sums of money as the Agency may require in the exercise of its functions under this Law or its subsidiary legislation.
38. (1) The Agency shall be exempted from the payment of income tax on any income accruing from investments made by the Board or otherwise howsoever.
- (2) The provision of any enactment relating to the taxation of

companies or trust funds shall not apply to the Agency or the Board.

PART VII - LEGAL PROCEEDINGS

39. (1) Subject to the provisions of this Law the provisions of the Public Officers Protection Act shall apply in relation to any suit instituted against any member or officer or employee of the Agency.

(2) Notwithstanding anything contained in any other law or enactment, no suit against a member of the Board, Director General or any other officer or employee of the Board for any act done in pursuance or execution of this Law or any other law or enactment, or of any public duties or authority or in respect of any alleged neglect or default in the execution of this Law or any other law or enactment, duties or authority, shall lie or be instituted in any court unless it is commenced:

(a) Within three months next after the act, neglect or default complained of; or

(b) In the case of a continuation of damage or injury, within six months after the ceasing thereof.

(3) No suit shall be commenced against a member of the Board, the Director General or any other officer or employee of the Agency before expiration of a period of one month after written notice of the intention to commence the suit shall have been served on the Agency by the intending plaintiff or his agent.

(4) The notice referred to in subsection (3) of this section shall clearly and explicitly state:

(a) The cause of action;

(b) The particulars of the claim;

(c) The name and place of abode of the intending plaintiff;

and

(d) The relief which he claims.

40. A notice, summons or other document required or authorised to be served on the Agency under the provisions of this Law or any other law or enactment may be served by delivering it to the Director General or by sending it by registered post addressed to the Director General at the principal office of the agency.
41. (1) In any action or suit against the Agency, no execution or attachment of process in the nature thereof shall be issued against the Agency unless not less than three months' notice of the intention to execute or attach has been given to the Agency.
- (2) Any sum of money which by the judgement of any court has been awarded against the Agency shall, subject to any direction given by court, where no notice of appeal against the judgement has been given, be paid from the fund of the Agency.
42. A member of the Board, the Director General or any officer or employee of the Agency shall be indemnified out of the assets of the Agency against any liability incurred by him in defending any proceeding, whether civil or criminal, if the proceeding is brought against him in his capacity as a member, Director General, officer or employee of the Agency.

PART VIII - MISCELLANEOUS

43. The Governor may give the Agency or the Director General such directives of a general nature or relating generally to matters of policy with regards to the exercise of its of his functions as he may consider necessary and it shall be the duty of the Agency or the Director General to comply with the directives or cause them to be complied with.

44. (1) The Agency may subject to the approval of the Governor by an Order published in the Gazette make regulations for the effective operation of this Law.
- (2) The Agency shall have power to review charges for services rendered from time to time which shall be published in the Gazette and charges shall be in consonance with any other related Law.
45. (1) The fixing of the Seal of the Agency shall be authenticated by the signature of the Chairman or any other person generally or specifically authorised by the Board to act for that purpose and that of the Director General.
- (2) Any contract of instrument which if made by a person not being a body corporate, would not be required to be under seal may be made or executed on behalf of the Board by the Director General or any other person generally or specifically authorised by the Board to act for that purpose.
- (3) Any document purporting to be contract, instrument or document duly signed or sealed on behalf of the Agency shall be received in evidence and shall, unless the contrary is proved, be presumed without further proof to have been signed or sealed.
46. The rights, interests, obligations, assets and liabilities of the Kwara State ICT Hub under the Ministry of Business, Innovation and Technology before the commencement of this Law under any contract or instrument are hereby vested in the Agency.
47. In this Law, unless the context otherwise requires –

“Agency” means the Kwara State Innovation & Information Technology Agency established under Section 1 of this Law;

“Board” means Governing Board of the Agency established under this Law;

“Chairman” means the chairman of the Board of the Agency;

“Committee” means committee established by the Board;

“Data” means a representation of information, knowledge, facts, concepts or instructions, which are being prepared or have been prepared in a formalised manner, and is intended to be processed, is being processed or has been processed in a computer system or computer network, and may be in any form (including computer printout, magnetic or optical storage media, punched cards, punched tapes) or stored internally in the memory of the computers;

“Director General” means the Director General of the Agency appointed under Section 18 of this Law;

“Electronic record” means data, record or data generated, image or sound stored, received or sent in an electronic form in the cloud, on a hard disk or similar device;

“Federal Government” means the Federal Government of Nigeria;

“Fund” means the Kwara State Innovation & Technology Fund, as established in Section 25 of this Law;

“Gazette” means Kwara State Government official Gazette;

“Government” means the Government of Kwara State;

“Governor” means the Executive Governor of Kwara State;

“Hub” refers to Information Technology or ICT Hubs across the State.

“Information Technology or IT” encompasses all forms of technology used to create, store, exchange and use information in its various forms (business data, voice, conversation, still images, motion pictures, multimedia presentations and other forms including those not yet conceived);

“Information Communications Technology or ICT” is to an alternate term for Information Technology with a focus on communications and infrastructure;

“MDAs” means Ministries, Departments & Agencies of Kwara State;

“Software” includes any program, procedure and associated documentation concerned with the operation of a computer system;

“State” means the Kwara State of Nigeria.

“Startup” means a company that meets the eligibility criteria specified in Section 13 of the Nigeria Startup Bill, 2021 with a labelling certificate as proof of eligibility.

48. This law may be cited as the Kwara State Innovation & Information Technology Law, 2023.